

IN THE {court}, {county} COUNTY, WEST VIRGINIA{caseNumberLine}

JAMIE Q. SAMPLE,
Applicant.

DOCKET NO.: [TO BE CONFIRMED]

CERTIFICATE OF SERVICE

STATUTORY AUTHORITY

W. Va. Code § 17C-5-2b(c) — The prosecuting attorney has 30 days after service of the motion to advise the judge of any objections, and in the absence of objections the court shall dismiss. Service is what starts that window.

W. Va. Code § 17C-5-2b(g) — Objections to the application are filed within 30 days after service of the motion for expungement. Service is what starts that window.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the {court}, [COUNTY TO BE CONFIRMED] County, West Virginia, where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this certificate of service occurred in [COUNTY TO BE CONFIRMED] County, West Virginia.

II. PARTIES

3. Applicant is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, WV 00000.
4. Applicant has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. On or about [PARTICIPANT'S OWN ARREST DATE — NOT SUPPLIED BY LEGALEASE], Applicant was charged with [PARTICIPANT'S OWN DESCRIPTION OF THE CHARGE — NOT SUPPLIED BY LEGALEASE] by [PARTICIPANT'S OWN ANSWER: THE AGENCY THAT ARRESTED THEM — NOT SUPPLIED BY LEGALEASE].
6. The matter was assigned Docket Number [TO BE CONFIRMED].
7. The matter was resolved with the following disposition: proceedings deferred under W. Va. Code § 17C-5-2b without entry of a judgment of guilt; probation imposed; Motor Vehicle Alcohol Test and Lock Program completed; charges dismissed and defendant discharged under W. Va. Code § 17C-5-2b(c). [DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

8. Applicant may be eligible for expungement on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

IMPORTANT: Applicant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Applicant respectfully requests that this Court:

- (a) Grant this Certificate of Service and enter an Order directing the expungement of all arrest and criminal history records in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to expunge all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE CITY, WV 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by applicant if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

Serve a copy of this submission and its supporting papers on the prosecuting attorney, and file a certificate of service. The 30-day objection window runs from service.

I certify that on _____, I served a copy of this Certificate of Service upon the prosecuting attorney at the following address:

[PROSECUTING ATTORNEY'S STREET ADDRESS — COMPLETED BY THE PARTICIPANT FROM THE CURRENT PUBLISHED ADDRESS]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

JAMIE Q. SAMPLE

Date: _____

ATTACHMENTS

Attachments submitted with this certificate of service:

- Certificate of Service

Prepared by applicant using LegalEase RCAP. This is not an official court form.